

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case Nos. 2014-1604

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF NANCY
R. SMITH, LICENSE NO. LPC 3632,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional
Counselor Examiners ("the Board") and Nancy R. Smith ("Respondent") as follows:

1. Respondent is a licensed professional counselor ("LPC") within the State of Colorado, license number LPC 3632.
2. The Board has jurisdiction over Respondent and the subject matter of this Stipulation and Final Agency Order ("Order") pursuant to the provisions of the Mental Health Practice Act, § 12-43-101 *et seq.*, C.R.S. ("MHPA").
3. Respondent obtained her license to practice as an LPC on November 28, 2003.
4. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of case number 2014-1604 without the necessity of holding a formal hearing.
5. This Order is a full and final resolution of case number 2014-1604. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
6. Respondent understands that:
 - a. Respondent has the right to a formal disciplinary hearing pursuant to §§ 12-43-223 and 24-4-105, C.R.S.;
 - b. By entering into this Order, Respondent knowingly and voluntarily waives the right to a hearing, admits the facts contained in this Order, and relieves the Board of its burden of proving such facts;

- c. By entering into this Order, Respondent knowingly and voluntarily waives the right to present a defense by oral and documentary evidence, and to cross-examine witnesses who would testify on behalf of the Board; and,
- d. By entering into this Order, Respondent knowingly and voluntarily waives the right to seek judicial review of this Order.

7. The Board finds that Respondent failed to report a potentially injurious environment, as defined by § 19-3-102, C.R.S., involving a minor client to the Department of Human Services ("DHS").

8. By virtue of the Board's findings in paragraph 7 above, the Board finds, that Respondent violated § 12-43-222(1)(g)(I), C.R.S.

ADMONITION

9. On the basis of the findings set forth in paragraphs 7 and 8 above, the Board hereby admonishes Respondent for violation of § 12-43-222(1)(g)(I), C.R.S. This Order is effective as a Letter of Admonition pursuant to § 12-43-223(3)(d), C.R.S. As part of the admonishment, Respondent agrees to the following terms as a Board Order:

CONTINUING EDUCATION

10. Within six (6) months of the effective date of this Order, Respondent must successfully complete the online Mandatory Reporter Training offered by the Colorado Department of Human Services through the Office of Children, Youth & Families. Upon completion of the training, Respondent shall ensure that proof of completion is provided to the Board. These training hours completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory Continuing Professional Development requirements for an active Colorado license or to meet any other licensure requirements.

TERMS AND CONDITIONS

11. Respondent will strictly observe the prohibitions set forth in § 12-43-222, C.R.S., and will ensure that she practices in accordance with the generally accepted standards of practice.

12. All expenses incurred or associated with any requirement necessary to fulfill the terms of this Order shall be the sole responsibility of Respondent and not the Board.

13. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to § 12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

14. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

15. This Order shall constitute a Board Order for purposes of § 12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal hearing pursuant to § 12-43-224, C.R.S.

16. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the MIHPA and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

17. Respondent shall obey all municipal, state, and federal laws while this Order is in effect.

18. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

19. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

20. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

21. This Order shall be admissible as evidence at any hearing held before the Board.

22. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

RESPONDENT

Nancy R. Smith, Ph.D., LPC
Nancy R. Smith, License No. LPC 3632

AGREED TO AND ORDERED BY:

BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS

Darcie Magnuson
Darcie Magnuson
Program Director

Effective this Date: 1st November, 2018